Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1379
Claimant:	Anthony Williams
Adjuster:	Alison Sweeney

2023-08-24
Claim opened after the insured's vehicle was struck from behind at a traffic signal. The claimant is not represented by a lawyer and reported a shoulder injury at first contact.

2023-08-29
The police report lists the claimant as a passenger in the vehicle and places responsibility for the rear impact on the other driver. The officer's notes match the sequence of events the claimant described.

2023-09-30
Scene photos and statements from several witnesses have been received, and each describes the collision as the claimant reported it. The other driver's account agrees on the point of impact.

2023-10-26
The driver is named on the policy, and coverage was in force when the loss occurred. Nothing in the file suggests any of the damage happened before the policy started.

2023-11-09
The claimant gave a recorded statement describing the impact and the onset of shoulder pain, and it matched the first report on every point. The same account has come up in each conversation since.

2023-11-20
Medical records show the injury pattern fits the force of the impact and the reported mechanism. Treatment followed a usual course, and visits tapered off as the claimant's condition improved.

2023-12-03
A saerch of prior records found no earlier injury to the same shoulder. The claimant's regular provider has no record of earlier complaints in that area.

2023-12-19
The repair appraisal shows major damage consistent with a rear impact. The appraiser has not yet determined whether all of that damage came from this event.

2023-12-27
Records from an earlier claim with another carrier show the same major damage to this vehicle from an accident that was never reported to this insurer. The damage is now being presented as new, and the file has been referred for further review.

2024-01-19
The claimant was asked about the earlier records and said the prior event was minor and was not reported. The explanation is consistent with the claimant's previous statements.

2024-02-02
The file remains open while the appraiser's supplemental report and an independent medical review are obtained. No coverage decision has been made at this time.

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Recorded Statement

Claim number:	C-1379
Statement of:	Anthony Williams
Taken by:	Alison Sweeney
Date:	2023-07-14

Q: Thank you for taking the time to speak with me today. This recorded statement concerns the rear-end collision you were involved in at an intersection in Sugar Land, Texas. Can you confirm you're comfortable continuing?

A: Yes, that's fine.

Q: Please describe in your own words what happened leading up to the collision.

A: I was stopped at a red light in the right lane. I had come to a full stop and was waiting for the signal to change. The vehicle behind me didn't seem to slow down in time.

Q: How fast do you believe the other vehicle was traveling when it made contact?

A: It wasn't going very fast, maybe a little faster than a crawl. But I didn't have time to react, and I felt the impact pretty hard through my seat.

Q: Were you wearing your seatbelt at the time?

A: Yes, I was.

Q: Did you notice any injuries immediately after the collision?

A: Not right away. I got out and walked around a bit, but later that evening my right shoulder started to ache and then got worse. Litfing my arm above my head is painful now.

Q: Have you sought medical treatment for the shoulder?

A: Yes, I went to an urgent care clinic the following morning. They took X-rays and told me to follow up with an orthopedic specialist.

Q: Do you have any prior injuries or conditions affecting that same shoulder?

A: I had some soreness a few years ago from a sports injury, but it had resolved and I hadn't had any problems since.

Q: Is there anything else you'd like to add about the collision or your injuries?

A: Only that I'm still having trouble sleeping on that side and I've had to take time off work. I'd like to be made whole for what I've gone through.

Q: Thank you. This concludes the recorded statement.

A: Thank you.